IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, LAW COURT COMPLEX (CRIMINAL DIVISION "2") HELD IN ACCRA ON THURSDAY, 3RD DAY OF APRIL, 2025 BEFORE HER LADYSHIP JUSTICE MARIE-LOUISE SIMMONS (MRS.), JUSTICE OF THE HIGH COURT

CASE NO.: CR/0187/2025

THE REPUBLIC

VRS.

UMMU HAIRA SALIFU - RESPONDENT

EX-PARTE:

1. DANIEL ASENSO YEBOAH - 1ST APPLICANT

2. BEATRICE ANIMWAA AKOMA - 2ND APPLICANT

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JUDGMENT

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THE APPLICATION FILED AND SERVICE OF SAME

The Applicants originated this action per the filing of an application for Contempt of Court on the 30th December 2024. The Applicants have prayed the Court to commit and punish the Respondent herein for Contempt of Court for conduct which is deliberate and willful and a disregard for the authority of the Court. The acts of the Respondent have been said to be a ridicule of the laws of this country and a defiant act and conduct, calculated to bring the authority of the Courts into disrepute.

Again, the Respondent's acts are said to be acts that will prevent the Plaintiffs/Respondents especially the 2nd Respondent from having access route to her home to enable her enjoy the services of emergency and relieve agencies such as ambulances and fire in case of such emergencies.

The application is supported by an 18 paragraphed affidavit in support and some annexures. There are also two (2) supplementary affidavits in support one filed on the 31st January 2025 attaching the relevant Order of the trial Court and another filed on the 17th March 2025 providing further particulars on the exhibits earlier attached to the application. The annexures are the **Exhibit A-F series**.

The supporting affidavit deposed to by the 1st Applicant for himself and on behalf of the 2nd Applicant states that both **Applicants took out a Writ of Summons and an Application for Injunction at the Circuit Court, Achimota in Accra against the Respondent herein as the Defendant.** It is said that the said Writ and Injunction were both served on the Respondent herein. The application further explains that all parties are residents of Bankyease-Tabora within the Ga Central Municipality and the Respondent had commenced developments of the adjoining land to the West of the 2nd Applicant's land and East of the 1st Applicant's land. This development is said to have blocked off access routes to the home of the 1st Applicant and also the kitchen area and back door of the 2nd Applicant hence the suit.

The application continues that with the Respondent being incensed by the service of this Writ, she brought earth moving machines and vehicles to dig a manhole in the section of the road adjoining the property, the subject matter of the suit, with a wall constructed to block the road. It has been asserted that this construction blocked the road preventing access to the Applicants especially in case of the use of the emergency services. It is also deposed that the manhole constructed posed a danger to the entire community especially school children who used that route.

Further deposed is the fact that the Ga Municipal Assembly was informed of the acts of the Respondent and the pendency of the injunction application. That consequently, the Assembly came to demolish the wall constructed by the Respondent and stopped the construction of the manhole. However, the Applicants state that, the demolishing did not deter the Respondent who went ahead to barricade the road with roofing sheets to stop all members of the public from plying that route. In addition to this, it is said that with the application for injunction still pending, the Respondent continued the building. That eventually the trial Court granted the Order of Interlocutory Injunction on the 11th December 2024 in the presence of the Respondent and her lawyers.

It has been deposed further that the *"Respondent had evinced an unbridled intent"* to forcefully deprive the entire community of their rights to their parcels of land and access to emergency services and has continued to defy the orders of the trial Court on the Interlocutory Injunction. In addition, it had been stated that there is no other

access route the entire community with the blocking off of the road by the Respondent. It has been finally deposed that the acts of the Respondent shows disdain and is *"contumacious and willful disrespect"* to the judicial authority of the Court and tends to bring disrepute to the Court.

Annexed to this application were the following:

1. **Exhibit A series** - Pictures of wall built by the Respondent blocking the kitchen doorway of the 2nd Applicant.
2. **Exhibit B series** - Pictures of the manhole posing danger to the community, and denying the Applicants access to emergency services.
3. **Exhibit C series** - Pictures of the demolition by the assembly and earlier writing on the wall warning to stop construction of the manhole.
4. **Exhibit D series -** Images depicting the use of roofing sheets by the Respondent to block the road and the continuing work on the manhole.
5. **Exhibit E series** - Pictures of works by the Respondent allegedly after the grant of the injunction with the building of a huge metal gate and additional block works.
6. **Exhibit F series** - A copy of a building permit certificate in the name of one Ibrahim Anass dated 20th May 2021 for the construction of a semi-detached three (3) bedroom house, with pictures of young children going to school walking around the manhole.

7. **Exhibit G -** A copy of the Order of Interlocutory Injunction of the Circuit Court, Achimota**.**
8. **Exhbit H series -** Pictures showing the difference between the construction at the block works stage and a completely coped wall depicting continuous work.

THE RESPONSE

The Respondent having been served with both the main application and its two (2) supplementary affidavits and has also filed her affidavit in opposition on the 15th January 2025, she also had filed on her behalf two (2) supplementary affidavits in opposition on the 4th February 2025 responding to the filing of the Application for contempt and another supplementary affidavit in opposition filed on the 12th March 2025 providing further particulars on exhibits attached to her earlier affidavits.

The relevant depositions in the Respondent's affidavit in opposition are that she commenced her building on a plot she purchased from one, Ibrahim Anas. That she denies blocking the access routes to the homes of the Applicants. The Respondent rather deposes that it is the 1st Applicant who have failed to construct a bridge to access his home as all other landowners in the vicinity do but rather wants to use her land as his access route.

Again, the Respondent asserts that she constructed the manhole before the Applicants' Writ was filed and denied their depositions to the contrary. She has in

addition stated that if anything, it is the Applicants who had rather committed contempt when they reported her development to the Municipal Assembly and instigated the demolition of her manhole. This demolition she states was done on the 30th November 2024, at a time when the injunction application, the Applicants had filed was still pending for determination. In further response, it is the Respondent's contention that she did not go ahead in disregard of the orders of the Court to barricade the road with roofing sheets as alleged but had the sheets installed after the demolition to protect and prevent children from falling into the death trap created by the Assembly. The photographs annexed to the application by the Applicants been stated by the Respondent not to reflect the true state of the area at all material times.

The Respondent assets that she had not acted unlawfully nor demonstrated any disregard for the orders of the trial Circuit Court. She states that she has acted in good faith. Her assertion has also been that she is the owner of the land in issue and the building permit on the land in the name of Ibrahim Anas issued to her. In further explanation, she states that Ibrahim Anas built a two (2) storey on the land and she commenced the three (2) storey by presenting her site plan and building permit to the Assembly. However, the Respondent admits that the site plan and building permits still bore the name of the said Ibrahim Anas.

In direct response to the orders of the trial Court which she is said to have disobeyed, she states as per supplementary affidavit filed on the 4th February 2025, that the orders granted were in respect of the land as measured and endorsed on the Writ of

Summons. That the said land as described was in respect of the area abutting her land to the West measuring about 20 feet or less. The Respondent finally deposes that she did not and has not taken any steps to further develop the land after the orders of the Court were made. She finally deposes and denies that she violated the orders of the Circuit Court and that the present application is a misrepresentation of the facts and deliberate attempt to intimidate her and harass her. She therefore urges this Court to dismiss this application for contempt.

Annexed to her response by way of exhibits are:

1. **Exhibit 1 Series** - Pictures of bridges constructed by other persons living along the water in the area of the land in issue to enable them access the road with their cars, which similar act the 1st Applicant is said to have failed to do.
2. **Exhibit 2** - A picture of a manhole filled with water and posing as a death trap.
3. **Exhibit 3 -** A copy of the original site plan covering the two plots of land.
4. A picture of the two (2) storey building built by Ibrahim Anass on his portion of land.
5. **Exhibit 5 series -** Copies of the Respondent's site plan covering the portion of her land, the proposed storey building and the building permit certificate.
6. **Exhibit 6 -** A picture of the Respondent's three (3) storey building.
7. **Exhibit 7 -** A copy of the Writ of Summons filed by the Applicants.

The Applicants have also filed their Written Submission on the 17th March 2025. In the submission, the counsel for the Applicants did not only address the possible acts of the Respondent deemed to have been a disobedience to the orders of the trial Circuit Court, but also the acts of the Respondent which were allegedly committed during the pendency of the suit even before the orders of the Court were made. An indication of the interference with the administration of justice. The essential elements of the offence of Civil Contempt as enumerated in **THE REPUBLIC VS. SITO EX-PARTE: FORDJOUR** case were also discussed. It was finally submitted that he the Respondent's act has been a willful disrespect of the judiciary authority of the Courts and the Respondent must be punished

THE LAW ON CONTEMPT

The power to punish for Contempt of Court as a common law offence has been saved by the Constitution of Ghana and reserved for the Superior Courts. See **Article 19 (2) and 126 (2) of the 1992 Constitution; Section 36 of the Courts Act, 1993 (Act 459) as amended by the Courts (Amendment) Act, 2002 (Act 620).**

The law of contempt has been defined by the Merriam–Webster's Dictionary of Law as follows:

"Willful disobedience or open disrespect of the orders, authority, or dignity of a Court or a judge acting in a judicial capacity by disruptive language, or conduct or by failure to obey the Court's orders."

The **Black's Law Dictionary, 9th Edition by Bryan A. Garner as Editor in Chief** at page 360 also defines contempt as:

"A conduct that defies the authority or dignity of a Court or legislature. Because, such conduct interferes with the administration of justice, it is punishable, usually by fine or imprisonment."

In the old English case of **HELMORE VS. SMITH (NO.2) (1887) 35 CHANCERY DIVISION, 449 AT 455,** Lord Justice Bowen succinctly explained the object of the Law of contempt as follows:

"The object of the discipline enforced by the Court in case of contempt of Court is not to vindicate the dignity of the Court or the person of the judge, but to prevent undue interference with the administration of justice. The question, therefore, here is whether there has been an interference with the administration of justice."

The power of contempt is rarely invoked by the Court. It is only invoked when the dignity, respect and the authority of the Court is threatened. It has been said that these powers are given to the Courts to keep the course of justice free. The power of contempt by the Court is of great importance to society. By the exercise of the power

of contempt, law and order prevail. Those who are interested in wrong are shown that the law is irresistible.

The jurisdiction of the Court in Contempt Proceedings is properly invoked under the Rules of Court by either **(i) Order 50 or (ii) Order 43 of C.I. 47 depending on the nature of the Application**. The procedure is, however, not exhaustive but for the purpose of this ruling the Court would consider only the above two. The Applicants mounted their action under **Order 50 Rule (1) of C.I. 47**

In reference to **Order 50 and 43** aforementioned and case law, contempt will arise if one conducts ***oneself in a manner that interferes with the fair administration of the law/justice or willfully disobey by acts or omission he orders of a Court or lawful adjudicating body.***

CLASSIFICATION OF THE LAW OF CONTEMPT

The law on contempt as found in the constitution and in Statutory provisions and Rules aforementioned have not been classified. However, textbook writers and case law have over the years provided the Courts with some classification which have aided in the determination of contempt cases

This classification is supported by cases such as **THE REPUBLIC VRS. NUMAPAU, PRESIDENT OF THE NATOINAL HOUSE OF CHIEFS, EX-PARTE: AMEYAW 11 (NO.2) (1998-1999) SCGLR 639** which espoused the classification as follows:

> *"Contempt of Court might be classified either as* ***direct or indirect*** *or* ***civil*** *and* ***criminal****.* ***Direct contempt*** *were those committed in the immediate view and presence of the Court (such as insulting language or acts of violence) or so near the presence of the Court as to obstruct or interrupt the due and orderly course of proceedings.* ***Indirect or constrictive contempt*** *were those arising from matter's occurring in or near the presence of the Court which tends to obstruct or defeat the administration of justice, such as failure or refusal of a party to obey a lawful order, injunction or decree of the Court laying upon him a duty of action or forbearance****. Civil contempt's*** *were these quasi contempt's consisting in failure to do something which the party was ordered by the Court to do for the benefit or advantage of another party to pending proceedings, while* ***criminal contempt's*** *were acts done in respect of the Court or its processes or which obstructed the administration of justice or tended to bring the Court into disrespect."*

In this present action reliant on a supposed disorder of a Court order, this Court can safely classify this application as civil contempt, an indirect one as such. In the case of **THE REPUBLIC VS. THE MANAGING DIRECTOR, STATE HOUSING CO. LTD., EX-PARTE: MRS. M.Y. N ACHIAMPONG (2018) JELR 65309 CA**, the Court of appeal confirmed that:

"A civil contempt, consists in the refusal of a party to do something which it is ordered to do for the benefit or advantage of the opposite party, and the punishment is intended to satisfy the party whose interest has been injured."

IN THE REPUBLIC VS. ESSASOHENE NANA BOAKYE AGYEMAN, EX-PARTE: NANA KAWAKU NSIAH (2016) JELR 65573, CA, AYEBI JA explained civil contempt thus:

"…on the other hand, civil contempt is an act by a person which is an affront to an order or decision delivered by a Court. Such an order shall be clear and unambiguous and the Applicant should have willfully disobeyed it."

Upon reliance on the 1992 Constitution, Statutory provisions and Rules on contempt, the Courts have developed the elements or ingredients of contempt for an Applicant of civil contempt to fulfil in order to succeed. In the case of **REPUBLIC VS. SITO 1, EX-PARTE: FORDJOUR (2001-2022) SCGLR 322**, the Supreme Court set down the ingredients which have to be proved in contempt as follows:

a. *There must be a judgment or an order requiring the contemnor to do or abstain from doing something.*
b. *It must be shown that the contemnor knows what precisely he is expected to do or abstain from doing.*
c. *It must be shown that he failed to comply with the terms of the Judgment or the order and that his disobedience was wilful.*

BURDEN OF PROOF

The burden of proof in the sense of the burden of establishing the guilt of a Respondent is always on the Applicant. To obtain a Committal Order for Contempt, the Applicant must strictly prove beyond all reasonable doubt that the Respondent had willfully disobeyed and/or violated the Court's Order and/or the conduct of the Respondent tends to bring the authority and the administration of the law into disrepute. In the absence of such evidence, the Respondent cannot be guilty of Contempt of Court.

See **REPUBLIC VS. S.K. BOATENG & ORS, EX-PARTE: AGYENIM BOATENG & ORS (2009) 25 MLRG 34; (2009) SCGLR 154, AGBLETA VS. THE REPUBLIC (1977) 1 GLR 445, C.A**

In the **Evidence Act, 1975 (NRCD 323), Section 15 (1**), the same principle is put thus:

> ***"Unless and until it is shifted, the party claiming that a person is guilty of a crime or wrongdoing has the burden of persuasion on that issue".***

STANDARD OF PROOF

The Standard of Proof required in the case of a quasi-criminal case like Contempt is proof beyond reasonable doubt and has been amply stated in **Section 13 (1) of the Evidence Act, 1975 (NRCD 323)** as follows:

"In any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt."

Thus a quasi-criminal case cannot be proved on a balance of probabilities. On the standard of proof required to ground Contempt of Court, it was held in the **REPUBLIC VS. S.K. BOATENG & ORS, EX-PARTE AGYENIM BOATENG & ORS (2009) 25 MLRG 34 @ 39** as follows:

"Since Contempt of Court was quasi-criminal and the punishment for it might include a fine or imprisonment, the standard of proof required was proof beyond reasonable doubt, an Applicant must, therefore, first make out a prima facie case of contempt before the Court considers the defenses put upon by the Respondents."

THE ANALYSIS BY THE COURT

I have carefully read the entire application together with its annexures. I have also considered the affidavit in opposition and its annexures. In this application, with the vehement denial by the Respondent, she has put the Applicants to strict proof and this Court would be unable to convict her unless the Applicants shows that the said construction of structures on that particular piece of land by the Respondent forms part of the *res litiga* at the trial circuit Court.

Secondly, if it forms part of the *res litiga*, the Applicant must prove that at the time the suit and or the application for injunction was or were filed, and between that period and the time the order was made the state of the building has changed or progressed and the various exhibits of the Applicants prove so. That there must be prove by way of supporting evidence and not just the oral depositions, and in this case with the said pictures that the state of the structures in **Exhibits A and B series** portrays a time frame and structures different from those of **Exhibit C.**

In addition those of **Exhibit C** must also be different from **Exhibits D, E and H series** which are said to have been taken after the order was granted. Thirdly, if the first two (2) situations are satisfied in favour of Applicants they must proceed further to show that the continued building by Respondent was wilful and calculated to undermine the administration of justice. I must emphasize that these, the Applicants must establish by way of *prima facie* before the response of the Respondent may even be considered.

Considering the elements for an Applicant to establish for a civil contempt as enumerated above, and relying on the entirety of this application, there is no doubt that there is a pending land litigation at the Circuit Court, Achimota between the parties herein with the Applicants on one side and the Respondent on one. With the filing and exhibit of **Exhibit G**, there is also no doubt that consequent to this suit, an order of injunction was granted by the trial Court which is shown to have been drawn on the 6th January 2025.

The order states:

> *''IT IS HEREBY ORDERED that in the interest of justice, both parties their privies, agents, assigns, are hereby restrained from building any structure on the* ***subject matter land or having anything to do with the land until the final determination of this suit.''***

It has been factually considered that the Applicants has only exhibited before this Court by **Exhibit G** when this order was drawn, there is however no indication by way of Court Proceedings of when the actual order of the Court was made. There is no proceedings filed to indicate whether the order was made in the presence of the Respondent and no proof of service to indicate that she was served with same. Meanwhile from the bare assertion of the Applicants, the order was made on the 11th December 2024 in the presence of the Respondent and her counsel. It is important for it to be stated that in a contempt application with the standard of proof being beyond reasonable doubt, and with the requirement for an Applicant to at least a *prima facie* case before the defense of the Respondent is considered, it is not for the Court to seek to fill in gaps left by the Applicant by reference to the defence of the Respondent.

It is also pertinent to state that notwithstanding the fact that the Respondent has not denied having notice of this order of the Court nor being present in Court on the day the order was made, it is incumbent on the Applicant to proof his case and not the Respondent. Be that as it may, it is evident that the Respondent is aware that an order

of injunction was made in the pending suit against all parties in relation to the subject matter of the suit.

The next hurdle for the Applicants to cross is, to be expressed in this question, what exactly is the *res litiga*, subject matter of the land stated in the order, on which piece of land were the parties per the Courts order restrained from building on or having anything to do with. To better appreciate what the *"subject matter of the land is"* in relation to the order made, reference has to be made to the writ of summons and claim, the originating documents that describe the land. This is because the trial Court in the order made reference to ***"the land the subject matter of the suit***". Once again, the Applicants failed to exhibit or make reference to the writ and claim. The Applicants have however stated in their supporting affidavit paragraph 5 in a bid to describe the subject matter as follows:

> ***"That the Respondent had commenced developments of the adjoining land to the west of 2nd Plaintiff's land and East of the boundary of the 1st Plaintiff's land and thus blocking off the access routes to the home of 1st Plaintiff and building a wall into the kitchen area of 2nd Plaintiff…"'***

The Respondent in denial of this allegation has also deposed at paragraph 4 of her supplementary affidavit of the 4th February 20205 that:

> ***"In answer to paragraphs 5 and 6 of the … I state that the order of injunction granted was in respect of the area abutting my land to the west measuring***

about twenty feet more or less as endorsed on the writ summons issued by the Applicants. Annexed and marked as Exhibit 7 is a copy of the writ of summons issues by the Applicants."

With the Respondents denial of the subject matter as described by the Applicants, the Applicants have been put to strict proof of the *res litiga*. It is not the Respondent who has a duty to proof her innocence, and to prove what land was the subject matter of the suit or order. An Applicant in a contempt case has the duty to prove in clear, unambiguous and uncertain terms, the order which the Respondent is said to have disobeyed. May I reiterate that, whilst the Respondent, has exhibited as her **Exhibit 7**, a copy of the writ of summons and statement of claim it is not for this Court to prove the Applicants case through the Respondent. Through the pictures filed, the Applicants have sought to show the continuous construction by the Respondent. **Exhibit A and B series** are supposed to show the state of the construction before the application for injunction was filed, but apart from the mere depositions made, **Exhibits A and B** do not speak for themselves. **Exhibit A** is difficult to appreciate, where the houses of the Applicants are therein and which access is being blocked. **Exhibit B2** shows some trench of an access road with people passing by, but this picture does not depict the period when the said hole was dug, meanwhile both parties agree that the hole was dug before the order was made, and it was precisely due to this that the Assembly stopped the Respondent from working even before the order was made. Wherein then lies the disobedience to the orders of the Court per the

Exhibit B? In Exhibit C, the warning inscription of the GCMA is seen on the wall of a building, clearly the date for work to be stopped was prior to the said date of the order made, how does that affect the orders of the Court? In **Exhibit C2,** there is seen a newly constructed wall with some debris, but the period when the wall was constructed and whether the wall had indeed been constructed on the subject matter of the order is unknown. It is difficult for the Applicants to convince this Court that the Respondent failed to comply with the terms of the orders of the trial Court and that her disobedience was wilful.

It has been deposed by the Applicants that the Respondent continued to defy the orders of the Court on the interlocutory injunction even after it was granted. This they said per their main affidavit paragraph 12 is evidenced by the **Exhibit E series**. The Exhibit E series as attached however shows no indication of when the wall found therein was built, before or after the order was made. Meanwhile Exhibit C series also exhibited in the same application said to have been taken before the order was made seem to have the same height as that of the Exhibit E series.

Again, in the supplementary affidavit of the Applicants filed on the 21st January 2025, the Exhibit H series of pictures have been exhibited. They are three (3) pictures with the dates on them being the 17th January 2025. Two (2) of them show what seems to be a front part of the storey building of the Respondent with the same length of the wall as the others apparently built before the order. Exhibit H3 shows another angle of the wall with the coping on a seemingly later development. However, this wall with the

coping does not seem to have any connection to the said easement between the Applicants and Respondent's structures but rather leads into another property. I have also observed and found that the pictures that are supposed to depict the acts of the Respondent before the order was made do not show this angle of the wall with the coping now. I am therefore unable to determine when this coping was made on the walls, thereby making it difficult to confirm a defiance of the Court order.

The Respondent has meanwhile consistently denied in all her affidavits including the very last filed on the 4th February 2025, that the pictures exhibited by the Applicants deliberately misrepresent the facts before the Court. Again, she has denied and stated that the pictures do not suggest a violation of the Court order. This I do agree, as the pictures portray different and confusing angles of the issue. Apart from the three (3) pictures of Exhibit H series, none of the others has a date or any indication of when they were taken for a reasonable comparison to be made between the acts of the Respondent before and after the order. It is evident that the Applicants have not been able to prove that the Respondent failed to comply with the terms of the order and that her disobedience was wilful.

I must comment that this being a contempt application with emphasis on the disobedience to a Court order made, this Court is not much concerned with acts of the Respondent preceding the order except those that might have been done during the pendency of the suit, that is from the time the suit was filed. From the entirety of the application, it seems to me that much attention was placed on the alleged acts of the

Respondent prior to order of the Court as against the subsequent acts. In the case of **AGBELETA VS THE REPUBLIC [1977] 1GLR 445**, it was stated *inter alia*:

> ***"It seems to follow from the authorities that wilful disobedience of the orders of a Court must be established before a person be held to be guilty of contempt. With all due respect to the learned judge this Court thinks that it is one thing to find unsatisfactory the appellants' explanation of his conduct, and quite another to infer wilful defiant from his conduct"***

This follows that it does not matter the explanation a Respondent provides to a contempt application it is still incumbent on the application just as a prosecutor in a criminal trial, to at least provide a *prima facie* case first, and this in my considered opinion, the Applicants have failed to do.

Having decided that the Applicants have failed to proof their case of a civil contempt, it would have been most appropriate to have concluded this decision at this stage and left the Respondent off the hook. However, there cannot at this stage be a termination of the power of this Court in seeking to determine the culpability of the Respondent also in a criminal contempt action or not. This is because as has been stated severally in the course of this decision, contempt can also lie against a party to an action who, knowing the case is before a Court or judicial body, nevertheless goes ahead to commit acts that prejudices the outcome of the case. What constitutes criminal contempt has been explained and defined in cases such as **THE REPUBLIC VS. JEHU APPPIAH AND ORS EX-PARTE: FORSON (1981) GLR 398 Holding 1** as follows:

"The test for contempt was not confined to cases where the conduct of the Respondent did prevent the Court from enquiring into specific matters raised in the pleadings in the suit before it. It was still contempt even when the Court could go into the matter but the end product of the exercise of that jurisdiction would be marred by some act of interference done during the pendency of the action…"

The Supreme Court in the most recent case of **THE REPUBLIC VS. THE BANK OF GHANA, THE GOVENOR (BANK OF GHANA) AND 4 ORS, EX-PARTE: BENJAMIN DUFFOUR, CIVIL APPEAL NO. J4/34/2018, DATED 6TH JUNE 2018.** The Court gave further clarity and meaning to what constitutes criminal contempt when it stated:

"When a Court is seized with jurisdiction to hear a matter, nothing should be done to usurp the judicial power that has been vested in the Court by the constitution of Ghana. In effect the state of affairs before the Court was seized with the matter must be preserved until the Court gives its judgment. This is so whether or not the Court has granted an order to preserve the status quo or not".

The Apex Court also stated in relation to this kind of Court thus:

"The Respondents in their statement of case have said that not a single one of the Respondents have engaged in any acts which have the effect of bringing the administration of justice into disrepute and or scandalizing the Court. They

further state that for an act to constitute contempt it has to be a willful disobedience of an order of a Court. <u>True as their contention may be, we believe the Respondents miss a very important aspect of contempt of Court, they fail to consider the fact that contempt of Court may arise when a party knowing that case is sub judice engages in an act or omission which tends to prejudice or interfere with the fair trial despite the absence of an order of a Court</u>"

The question to be asked in this case is, was there any act(s) of the Respondent in the course of the pendency of the case before the Circuit Court which can be deemed to have undermined or had the possibility of undermining the administration of justice, even in the absence of an order.

It is evident from the depositions of the Applicants and alleged that while the application for injunction had been filed and before it being heard the Respondent was busy building. These acts the Applicants state include the barricading the road with roofing sheets, Respondent herself in her affidavit in opposition particularly paragraphs 10, 11 and 12 has stated *inter alia:*

"I vehemently deny paragraph 10 of the affidavit in support and state that the roofing sheets were installed after the demolition to protect and prevent children from falling into the death trap created by the assembly as a result of the Plaintiffs/Applicants instigations."

Annexed and marked as Exhibit 2 is evidence of the death trap crated as a result of the Plaintiff/Applicants actions. The Exhibit D and Exhibit H3 has a picture of the said roofing sheets used to cover a particular area behind the built wall. The Respondents Exhibit 2 is not too clear to analyze. Indeed none of the pictures exhibit from both sides show clearly the existence of a manhole. It is rather Exhibit B2 which shows some dug space with people passing around it. It is nevertheless important to consider the Respondents admits that indeed she did construct that roofing sheets after the collapse of her manhole by the Assembly. This period according to the Applicant and not challenged by the Respondent was a time when the writ had been filed and injunction application had been filed and was to be determined. That certainly was a time the case was *sub judice*.

There is however still the need for the Applicants to proof that the site where the said roofing sheets were used affect the subject matter of the pending suit. This once again the Applicants have failed to proof. Assuming even that the Applicants have done so, the explanation of the Respondent that the roofing sheets were just to protect and cover a hole to prevent danger seems plausible. Both Exhibits D and H3 show only a small part of a wall where the sheets were installed. It is evident and obvious that the roofing sheets was being used to cover or protect a particular space. The use of the roofing sheets does not in any way show construction. The explanation of covering up that hole would not make the acts of the Respondent one that would undermine or prejudice or the undermine the authority of the Court nor willful. Criminal contempt will therefore also not hold.

On the totality of the Applicants case and for the foregoing reasons, I hold that the Applicants have not been able to establish the guilt of the Respondent herein to the required standard of proof beyond reasonable doubt.

The Application is therefore refused and accordingly dismissed. The Respondent is however warned that as the suit is still pending and the injunction order still exists, any acts done in relation to the subject matter of the suit without an order of the Court may constitute contempt and she must be warned.

The Court will therefore award costs of GHC3000 against each Applicants.

(SGD)
JUSTICE MARIE-LOUISE SIMMONS (MRS)
(JUSTICE OF THE HIGH COURT)

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